

burden by showing that the statements made before legislative, executive or judicial proceedings, or made in connection with matters being considered in such proceedings, or the statements made in a public forum, or other conduct in furtherance of the exercise of the constitutional rights of petition or free speech, in connection with issues of public interest. (Code Civ. Proc., § 425.16, subd. (e); *Equilon Ent., LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 66).

Cross-Complainants have failed to oppose the motion. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 10, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Thus, Cross-Complainants have failed to meet their responsive burden of production to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(1); *Balzaga v. Fox News Network, LLC* (2009) 173 Cal.App.4th 1325, 1336).

IV. CONCLUSION

Based on the foregoing, and the unopposed motion, the Court GRANTS Cross-Defendants' special (anti-SLAPP) motion to strike portions of the Cross-Complaint as follows: (1) fifth cause of action, slander of title (invalid mechanics lien); (2) sixth cause of action, abuse of process/malicious prosecution; (3) eighth cause of action, declaratory relief (invalidity of lien; and (4) thirteen cause of action, quiet title, because appellate courts routinely hold the filing of a mechanics' lien implicate a party's right to petition.

The Court will prepare the formal Order.

Calendar Line # 8

Case Name P. Hong vs Justine Papa et al

Case No. 25CV476168

Demurrer

Before the court is defendants' demurrer to plaintiff's complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Prudence Hong ("Hong") was hired by defendant Stanford Health Care ("SHC") on April 17, 2023 as a Licensed Clinical Laboratory Scientist ("CLS"). (Complaint, ¶15). Plaintiff Hong has a disability within the meaning of FEHA, specifically Post-Traumatic Stress Disorder (PTSD) and Major Depressive Disorder (MDD), which substantially limits major life activities. (Complaint, ¶16). Plaintiff Hong had achieved remission of her PTSD and MDD through treatment and was performing her work duties satisfactorily. (Complaint, ¶17).

On or around May 2024, plaintiff Hong was partnered with defendant Joseph Diwas Tatsey ("Tatsey"), a Senior CLS, at the Urinalysis Bench for the first time. (Complaint, ¶¶6 and 18). Defendant Tatsey was expected to provide support and guidance to plaintiff Hong who was newly trained on the bench. (Complaint, ¶18). Hong alleges that instead of providing professional support, defendant Tatsey exhibited unprofessional and threatening behavior toward plaintiff Hong. (Complaint, ¶¶19 – 22).

Plaintiff Hong reported defendant Tatsey's violent and threatening behavior to her supervisor, defendant Justine Papa ("Papa"). (Complaint, ¶23). Defendant Papa did not offer sympathy, did not ask plaintiff Hong to fill out an

incident report despite plaintiff Hong's characterization of the incident as "workplace violence," and victim-blamed plaintiff Hong stating, "you must have both [Hong and Tatsey] been sensitive." (*Id.*).

Plaintiff Hong requested not to be partnered with defendant Tatsey but this was impossible given the shared laboratory space. (Complaint, ¶24).

On May 24, 2024, defendant Papa scheduled a meeting with plaintiff Hong and defendant Tatsey claiming defendant Tatsey was ready to apologize but at the meeting, defendant Tatsey was angry and threatening, slamming his hands on the table. (Complaint, ¶¶25 – 26). Plaintiff Hong distanced herself as far away from defendant Tatsey as possible. (Complaint, ¶26). Defendant Papa did nothing to correct defendant Tatsey's behavior during the meeting. (Complaint, ¶27). When plaintiff Hong realized defendant Papa could not or would not provide support and safety, plaintiff Hong left the meeting. (*Id.*). Plaintiff Hong sent defendant Papa an email expressing her fear of defendant Tatsey and reiterating no apology was made. (Complaint, ¶28). Defendant Papa never responded or addressed the situation further. (*Id.*).

Thereafter, plaintiff Hong was ostracized by all team members close to defendant Tatsey causing plaintiff Hong's mental health to plummet. (Complaint, ¶¶29 – 30). Plaintiff Hong's focus, concentration, and memory suffered leading to a work mishap on August 28, 2024 where plaintiff Hong confused the team's weekday versus weekend responsibilities. (Complaint, ¶31). Plaintiff Hong immediately emailed defendant Papa to take responsibility but defendant Papa did not acknowledge the email, instead pursuing an investigation and accusing plaintiff Hong of neglect and disrespect toward her team. (Complaint, ¶¶32 – 33).

On September 17, 2024, defendant Papa issued plaintiff Hong a written warning for alleged failure to meet standards, negligence of workflow, and playing games during work based on exaggerated or false claims by team members. (Complaint, ¶34). The written warning was issued in violation of defendant SHC's progressive discipline policy and eliminated plaintiff Hong's chance of an internal transfer for the next year. (Complaint, ¶¶35 – 36). The written warning also severely stunted any career growth or prospects for plaintiff Hong as a CLS. (Complaint, ¶36).

On September 23, 2024, plaintiff Hong filed a complaint with Human Resources ("HR") detailing the workplace violence, toxic work environment, and defendant Papa's misconduct as a supervisor and retaliatory discipline. (Complaint, ¶37). On December 13, 2024, plaintiff Hong met with an Employee & Labor Relations ("ELR") representative and disclosed her disabilities, the return of her PTSD symptoms, and worsening depression, anxiety, and insomnia. (Complaint, ¶39).

Following ELR intervention, plaintiff Hong's discipline was reduced from a written warning to a verbal warning and defendant Papa allowed plaintiff Hong to be trained in a new bench, though the hostile atmosphere continued and worsened. (Complaint, ¶40). Due to the hostile work environment, plaintiff Hong's mental health deteriorated significantly. (Complaint, ¶41). Plaintiff's PTSD and MDD symptoms returned and worsened despite treatment. (*Id.*).

On February 13, 2025, plaintiff Hong took a medical leave of absence and was hospitalized for eight weeks with severe depression and anxiety. (Complaint, ¶42).

On May 8, 2025, plaintiff Hong's psychiatrist completed a disability accommodation form recommending plaintiff Hong return to work with temporary restriction of working day shift only from May 31, 2025 to December 31, 2025, to allow for sleep normalization and attendance at evening therapy. (Complaint, ¶¶43 – 44).

On May 27, 2025, a management representative called plaintiff Hong to informally deny her accommodation request without stating an official reason. (Complaint, ¶45). Despite multiple CLS positions being available on the day shift, defendant SHC refused to accommodate plaintiff Hong’s temporary shift change request. (Complaint, ¶46).

On July 16, 2025, the management representative provided the formal accommodation denial letter without stating the undue burden defendant SHC would face in providing the accommodation. (Complaint, ¶47).

On August 1, 2025, defendant SHC issued plaintiff Hong a “Release from Position” letter stating that due to operational needs, defendant SHC was unable to hold plaintiff Hong’s position as a CLS and that she would be released from her position. (Complaint, ¶48). The release letter indicated plaintiff Hong’s health benefits were terminated on July 31, 2025 and plaintiff Hong would need to independently find a new position within Stanford after being released. (Complaint, ¶49).

During her leave, plaintiff Hong applied for internal transfers to other departments within defendant SHC. (Complaint, ¶50). Plaintiff Hong had interviews with supervisors who expressed interest in hiring her but after those supervisors spoke with defendant Papa, plaintiff Hong received no further communication which suggests defendant Papa provided negative references that sabotaged plaintiff Hong’s transfer opportunities. (*Id.*).

Plaintiff Hong alleges that Defendant SHC’s conduct was motivated by discriminatory animus based on plaintiff Hong’s race (Asian-American) and disability (PTSD and MDD) and in retaliation for her protected activities including her complaints of workplace violence, discrimination, and requests for accommodation. (Complaint, ¶54).

On September 24, 2025, plaintiff Hong commenced this action by filing a complaint against defendants SHC, Papa, and Tatsey asserting causes of action for:

- (1) Racial Discrimination in Violation of FEHA – Gov. Code §12940(a)
- (2) Disability Discrimination in Violation of FEHA – Gov. Code §12940(a)
- (3) Failure to Provide Reasonable Accommodation in Violation of FEHA – Gov. Code §12940(m)
- (4) Failure to Engage in Timely, Good Faith Interactive Process in Violation of FEHA – Gov. Code §12940(n)
- (5) Retaliation for Protected Activity in Violation of FEHA – Gov. Code §12940(h)
- (6) Harassment/ Hostile Work Environment in Violation of FEHA – Gov. Code §12940(j)
- (7) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of FEHA – Gov. Code §12940(k)
- (8) Wrongful Termination in Violation of Public Policy – *Tameny*
- (9) Safety Retaliation in Violation of Labor Code §6310
- (10) Whistleblower Retaliation in Violation of Labor Code §1102.5
- (11) Retaliation – Working Conditions Disclosure in Violation of Labor Code §232.5
- (12) Retaliation – General Labor Code Activity in Violation of Labor Code §98.6

On January 6, 2026, defendants SHC, Papa, and Tatsey filed the motion now before the court, a demurrer to plaintiff Hong’s complaint.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly

pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A. INDIVIDUAL DEFENDANTS PAPA AND TATSEY’S DEMURRER TO ALL CAUSES OF ACTION (EXCEPT FOR THE SIXTH) ON THE GROUND THAT THEY CANNOT BE INDIVIDUAL LIABLE IS SUSTAINED

The individual defendants, Papa and Tatsey, demur to all the causes of action asserted against them in plaintiff Hong’s complaint, save the sixth cause of action for harassment, on the ground that only an employer can be liable for discrimination and retaliation and they are not alleged to be plaintiff Hong’s employer. “[W]e conclude that individuals who do not themselves qualify as employers may not be sued under the FEHA for alleged discriminatory acts.” (*Reno v. Baird* (1998) 18 Cal.4th 640, 663 (*Reno*)). The California Supreme Court in *Jones v. The Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158 held Government Code section 12940, subdivision (h) will not support a claim of unlawful retaliation against a non-employer individual (such as a supervisor), if the underlying action is for discrimination.

“[A] supervisory employee is not personally liable under the FEHA, as an aider and abettor of the harasser, for failing to take action to prevent the sexual harassment of a subordinate employee.” (*Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1326).

“As a matter of law, only an employer can be liable for the tort of wrongful discharge in violation of public policy.” (*Khajavi v. Feather River Anesthesia Medical Group* (2000) 84 Cal.App.4th 32, 53).

In opposition, plaintiff Hong offers no argument to support individual liability against defendants Papa and Tatsey on any cause of action other than the sixth cause of action.

Accordingly, defendants Papa and Tatsey’s demurrer to the first, second, third, fourth, fifth, seventh, eighth, ninth, tenth, eleventh, and twelfth causes of action of plaintiff Hong’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] is SUSTAINED WITHOUT LEAVE TO AMEND.

B. HARASSMENT AND HOSTILE WORK ENVIRONMENT

Under the FEHA, it is unlawful “[f]or an employer . . . or any other person, because of . . . race . . . [or] mental disability. . . to harass an employee . . .”. (§ 12940, subd. (j)(1)). To establish a prima facie case of a hostile work environment, [a plaintiff] must show that (1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) ***the harassment was based on her protected status***; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment.

(*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581; see also CACI, Nos. 2521A and 2522A).

In demurring, defendants contend plaintiff’s sixth cause of action for harassment/ hostile work environment fails because she has not alleged that any harassment she suffered was based on her race (Asian) or disability (PTSD/ MDD). The initial incident between plaintiff Hong and defendant Tatsey in May 2024 was, by plaintiff Hong’s own allegation, triggered “[w]hen plaintiff informed [Tatsey] that one of the analyzers ran out of reagents” causing Tatsey to “explode[] with anger, raise[] his voice, and insult Plaintiff for ‘intentionally leaving work for him to do.’” (Complaint, ¶19). There are no particularized allegations which link the harassment to plaintiff Hong’s racial

or disability status. The only allegation to do so is found at paragraphs 90 and 92 where plaintiff Hong alleges, “Defendants subjected Plaintiff to harassment based on her race and disability” and “The harassment was based on Plaintiff’s protected characteristics of race and disability. . .”.

In opposition, plaintiff Hong notes she has made the general allegation that the harassment was based on her race and disability and contends any inference otherwise should be left to a trier of fact.¹³ However, the court finds this general allegation insufficient. This sixth cause of action is explicitly premised upon a statute, Government Code section 12940, subdivision (j). “[Where] recovery is based on a statutory cause of action, the plaintiff must set forth facts in his [or her] complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate. [Citations.]” (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5).

The court recognizes that in claims involving discriminatory animus, direct evidence of such discriminatory intent is rare and a plaintiff will typically only have circumstantial evidence. Even so, plaintiff Hong includes no detailed or specific factual allegations which would even give rise to an inference that the harassment plaintiff Hong purportedly suffered was because of her race and/or disability. Plaintiff Hong’s reliance on *Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 614 (*Thomas*) is not persuasive as even there, the court wrote, “At the demurrer stage, [plaintiff] was [] required . . . to **allege facts showing or supporting an inference of [discriminatory intent or motivation based on race or disability]**.” (emphasis added). The court in *Thomas* noted that there were factual allegations made to support a reasonable inference that the harassment, there, was based on gender. (See *Thomas, supra*, 97 Cal.App.5th at pp. 614 – 615—allegations “describe McGuire referring to players’ sexual activity (berating a young woman for having a hickey on her neck) or making comments that implicate gender-based stereotypes and expectations (comments about young women’s bodies; “calling out” a young woman’s physique and calling her “weak.”) Here, plaintiff Hong’s conclusory allegations that defendants’ harassment was based on Plaintiff’s race and disability do not suffice.

Accordingly, defendants’ demurrer to the sixth cause of action of plaintiff Hong’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for harassment/ hostile work environment is SUSTAINED with 10 days’ leave to amend.

C. WRONGFUL TERMINATION

Plaintiff Hong’s eighth cause of action is entitled, “Wrongful Termination in Violation of Public Policy – *Tameny*.” Apart from the individual defendants’ demurrer to this eighth cause of action, defendant SHC demurs to this eighth cause of action as well. “The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (*Yau v. Allen* (2014) 229 Cal.App.4th 144, 154).

Defendant SHC acknowledges paragraph 51 of plaintiff Hong’s complaint which alleges “constructive termination.” Nevertheless, defendant SHC contends plaintiff Hong has not alleged that she is no longer employed by defendant SHC or that she resigned her employment suggesting plaintiff Hong remains a current SHC employee.

Yet, at paragraph 1 of the complaint, plaintiff Hong alleges, in relevant part that she was employed by defendant SHC “from April 17, 2023 through August 1, 2025.” Then, plaintiff Hong alleges, “On August 1, 2025, SHC issued Plaintiff a ‘Release from Position’ letter, stating that due to ‘operational needs,’ SHC was ‘unable to hold

¹³ Plaintiff Hong contends racially discriminatory intent is evidenced by her allegation that “essentially every Filipino [another Asian group or group of national origin] member” participated in ostracizing her. Without more, the court does not follow plaintiff Hong’s logic here.

[her] position as a Clinical Lab Scientist’ and that she would be ‘released from [her] position.’” (Complaint, ¶48). “The release letter indicated that Plaintiff’s health benefits were terminated on July 31, 2025, and that she would need to independently find a new position within Stanford after being released.” (Complaint, ¶49). The court reads these allegations to state that defendant SHC terminated plaintiff’s employment.

Accordingly, defendant SHC’s demurrer to the eighth cause of action of plaintiff Hong’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for wrongful termination in violation of public policy is **OVERRULED**.

D. SAFETY RETALIATION IN VIOLATION OF LABOR CODE SECTION 6310

Plaintiff Hong’s ninth cause of action is premised explicitly on Labor Code section 6310. Labor Code “section 6310, subdivision (a)(1) prohibits an employer from discharging [or discriminating against] an employee for making a health and safety complaint. Section 6310, subdivision (b) provides remedies for an employee who is discharged for making a bona fide oral or written complaint of unsafe working conditions.” (*Cabesuela v. Browning-Ferris Indus.* (1998) 68 Cal.App.4th 101, 108; footnotes omitted).

Plaintiff Hong alleges she complained “specifically [about] workplace violence and unsafe working conditions created by Tatsey’s threatening and violent behavior.” (Complaint, ¶109).

Defendant SHC demurs to this ninth cause of action by arguing first, without citation to any legal authority, that “a report of workplace violence does not fall under an occupational safety and health hazard.” In the absence of any citation to legal authority, the court is left to surmise what does nor does not fall under an occupational safety and health hazard and, therefore, the court does not reach the conclusion, as a matter of law, that workplace violence is not an occupational safety and health hazard.

Next, defendant SHC argues next that defendant Tatsey’s allegedly threatening and violent behavior cannot be categorized as workplace violence. To support this assertion, defendant SHC cites 8 CCR §3342 which defines “workplace violence” as “any act of violence or threat of violence that occurs at the work site” including, “The threat or use of physical force against an employee that results in, or has a high likelihood of resulting in, injury, psychological trauma, or stress, regardless of whether the employee sustains an injury.” Defendant SHC argues the complaint lacks any allegation that defendant Tatsey threatened or used physical force against plaintiff Hong.

Initially, the threat or use of physical force is but one example of an act or threat of violence under the non-exclusive and, as defendant SHC admits, broad definition of “workplace violence” provided. Moreover, in the court’s view, plaintiff does allege a threat or use of physical force against her. At paragraph 20 of the complaint, plaintiff Hong alleges defendant Tatsey “returned with a heavy reagent, and slammed it just two feet to the left of Plaintiff” and “continued to kick around the reagent threateningly.” At paragraph 26 of the complaint, plaintiff Hong alleges that during her meeting with defendants Papa and Tatsey, Tatsey “slam[ed his] hands on the table.” The court finds that plaintiff has alleged the threat and/or use of physical force against her even if there is no direct contact.

Accordingly, defendant SHC’s demurrer to the ninth cause of action of plaintiff Hong’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for retaliation in violation of Labor Code section 6310 is **OVERRULED**.

E. RETALIATION – WORKING CONDITIONS DISCLOSURE IN VIOLATION OF LABOR CODE SECTION 232.5

Labor Code section 232.5 states, in relevant part, “No employer may . . . Discharge, formally discipline, or otherwise discriminate against an employee who discloses information about the employer’s working conditions.”

In her eleventh cause of action, plaintiff Hong alleges defendants retaliated against her, by subjecting her to adverse employment actions including disciplinary action and termination, for disclosing working conditions, including workplace violence, hostile work environment, and unsafe conditions, with her supervisor, HR, and other appropriate parties. (Complaint, ¶¶122 – 123).

Defendant SHC demurs to this eleventh cause of action by arguing first that plaintiff Hong has not alleged SHC terminated or disciplined her for disclosing information about her working conditions. Yet, paragraphs 122 – 123, immediately cited above, alleges retaliation for disclosing working conditions to her supervisor, HR, and other appropriate parties.

Accordingly, defendant SHC’s demurrer to the eleventh cause of action of plaintiff Hong’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for retaliation in violation of Labor Code section 232.5 is **OVERRULED**.

IV. CONCLUSION

Based on the foregoing, the Court **ORDERS** as follows: Defendants Papa and Tatsey’s demurrer to the first, second, third, fourth, fifth, seventh, eighth, ninth, tenth, eleventh, and twelfth causes of action of plaintiff Hong’s complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Defendant’s demurrer to the sixth cause of action is **SUSTAINED** with ten (10) days’ leave to amend from this hearing date.

Defendant SHC’s demurrer to the eighth; ninth; eleventh cause of action of plaintiff Hong’s complaint is **OVERRULED**.

The Court will prepare the formal Order.